

IN THE HIGH COURT OF THE UNITED REPUBLIC OF TANZANIA

(SUMBAWANGA DISTRICT REGISTRY)

AT SUMBAWANGA

LAND CASE NO. 4 OF 2021

SHUKURU ELIAS NYALINGA.....1ST PLAINTIFF
MAKALA NANGALI.....2ND PLAINTIFF

VERSUS

MPANDA MUNICIPAL COUNCIL..... 1ST DEFENDANT
ATTORNEY GENERAL.....2ND DEFENDANT
PETER ALOYCE MWAKIBINGA 3RD DEFENDANT
REVOCATUS GREGORY NGOMENI 4TH DEFENDANT

JUDGMENT

MWENEMPAZI, J.

The plaintiffs herein are claiming against the 1st and 2nd defendants severally and jointly for declaratory order that the Defendants are trespassers on plaintiffs plots measuring Nineteen Acres(19 acres) situated at Misunkumilo area alongside Mpanda Girls' Secondary School within Mpanda Municipality in Katavi Region herein to be referred to as 'land in dispute', an order for, to the 1st Defendant to surrender to, allow to develop and register the plaintiffs as the lawful owner of the disputed land, general and exemplary damages,

interest thereon and costs of this suit as a result of the acts of the defendants.

The background to the case according to the plaintiffs' plaint, the plaintiffs are lawful owners of the land in dispute measuring Nineteen Acres (19 acres) situated at Misunkumilo Areas along sided Mpanda Girls' Secondary School within Mpanda Municipality in Katavi Region, which they acquired through purchasing from customary owners namely Peter Aloyce Mwakibinga (the 3rd defendant) and Revocatus Gregory Ngomeni (the deceased) and they have been in total occupation and use of the same ever since 2012.

Among the said nineteen acres referred to above, five acres are legally owned by and are properties of the 2nd plaintiff which he acquired by purchasing from Revocatus Gregory Ngomeni (the deceased) since 06/04/2012 and the remaining fourteen (14) acres is legally owned by the 1st plaintiff whom in the year 2012 he purchased five (5) acres of it from the 3rd defendant and Nine (9) acres from Revocatus Gregory Ngomeni (the deceased) respectively;

It has been pleaded that both plaintiffs have been in total exclusive use and occupation of their plots (land in dispute) since 2012 when they acquired the

same until 2019 when the 1st defendant trespassed into the disputed land alleging that the same is within the boundaries of Mpanda Girls' Secondary School which is in ownership of the 1st Defendant.

It is in the plaintiff's averment that in the year 2019 the plaintiffs through both formal and informal by the plaintiffs, the defendants and other Government offices, whereof several committees were formed and undertook settlement processes which at last they came up with unequivocal findings that the land in dispute belong to the plaintiffs. Despite of the position reached, several demands both formal and informal by the plaintiffs, the defendant kept on trespassing to the disputed land, denying the plaintiffs to survey, develop and denied them to register the plaintiffs as lawfully owners of the land in dispute.

It is from the background the plaintiffs have knocked the doors of this court with the present suit praying for the following orders:

- a) That this Honorable Court be pleased to declare the 1st Plaintiff as the rightful owner of Fourteen acres (14 acres) of the land in dispute situated at Misunkumilo alongside Mpanda

Girls' Secondary School within Mpanda Municipality in Katavi Region.

- b) That this Honorable court be pleased to declare the 2nd plaintiff as the rightful owner of the Five acres (5 acres) of the land in dispute situated at Misunkumilo alongside Mpanda Girls' Secondary School within Mpanda Municipality in Katavi Region.
- c) That this Honorable court be pleased to declare that the Defendants are trespassers to the land in dispute.
- d) This Honorable court be pleased to order the 1st Defendant to give vacant possession permanently from the land in dispute forthwith.
- e) This Honorable court be pleased to order the 1st Defendant to survey the land in dispute and register the plaintiffs as the lawfully owner of the same.
- f) The defendants be ordered to pay general damages as shall be assessed by this Honorable court

- g) That Defendants be ordered to pay exemplary damages of at least Tshs. 40,000,000 as shall be assessed by this honorable court.
- h) This honorable court be pleased to order interest on item (f), (g) and (h) at 21% from the date of judgment to the date of payment in full.
- i) That, the Defendant be ordered to pay costs of this suit.
- j) Any other reliefs as this Honourable Court may deem fit and just to grant.

In defence the 1st and 2nd Defendant filed a joint Written Statement of defence where in they have averred that the plaintiffs are not entitled to any of the reliefs sought since they are trespassers. That they have as their sole intent to grab a public-school land through backdoor under the auspices of being customary owners. They have averred that the land legally belongs to the 1st defendant since 1980s and she has been in peaceful enjoyment of the same after establishing the said government owned school in the disputed land. The 1st and 2nd defendants demanded a strict proof of ownership from the plaintiffs.

In the joint written Statement of defence, the 1st and 2nd defendant has averred that both Petro Aloyce Mwakibinga and Revocatus Petro Ngomeni had never been customary owners of the land in dispute before 2010. Therefore, they had no title to pass by way of sale to the plaintiffs. On another side that the plaintiffs had no locus standi to sue and or cause of action against first defendant as their alleged sale agreement had a provision for measures that in case any dispute arises.

The defendants also averred in their plaint that when the 1st defendant acquired the disputed land, there was no any unexhausted improvements which had been made by the plaintiffs save for the water tank which was constructed by the first defendant so many years back. The rest of the areas are covered by natural vegetations and incomplete structures of the church buildings which were illegally erected in the disputed land.

According to the defendants, the 1st defendant surveyed her land measuring 83.2 acres out of 153 acres owned by her and before survey she paid compensation to the pre-existing owners for unexhausted improvements. The compensation was paid to all 153 acres which are owned by first defendant. When the land was acquired in 1985 the land belonged to the

Ministry of Education. The defendants averred that the 1st defendant legally owns the disputed land since the year 1985 and that she surveyed the same in the year 1985 and the survey map plan was approved in the year 1992. In the year 1989 all the customary owners who existed before the survey were compensated for unexhausted improvement which they made by then as shown in the compensation schedule dated 26th February, 1989. The 1st and 2nd defendant therefore have prayed for the following orders:

- i. Declaratory order that the first and second defendants are the legal owners of the disputed land.
- ii. Declaratory order that plaintiffs, third and fourth defendants are trespassers to the disputed land.
- iii. An order for permanent injunction restraining the plaintiffs, third and fourth defendants or their agents from encroaching the land in dispute.
- iv. An order for dismissal of the entire suit for want of merits.
- v. Costs of this suit
- vi. Any other reliefs as this honourable court may deem fit and just to grant.

At the hearing of the suit, all parties were represented. The plaintiffs were being represented by Mr. Kulwa Hezron Ngunga, learned Advocate. The 1st and 2nd defendant were being represented by Mr. Mujahid Kamugisha, learned State Attorney; and the 3rd and 4th defendant were being represented by Mr. Samwel Kipasha, learned Advocate.

The following issues were framed to guide parties in their presentation of their respective cases and also this court in its determination of the dispute at hand. The same were as follows:

1. Whether the plaintiffs have cause of action against the 1st and 2nd defendants.
2. Whether the plaintiffs are lawful owners of the disputed land
3. Whether the 3rd and 4th defendants had good titles to pass the disputed land to the first and second plaintiffs.
4. What are the reliefs each party was entitled to.

The plaintiffs called six witnesses to prove their case, namely: Shukuru Elias Nyalinga (PW1), Omar Mahamudu Kamwendwe (PW2), Fredrick Makala Mangali (PW3), Ramadhani Koza (PW4), Chrisant Andrea Mwanawima (PW5) and Matendo Alfred Kanyepo (PW6). Apart from those, Peter Aloyce

Mwakibinga (DW1), Abraham Kaswa (DW2) and Mary Thadeo Ngomalufu (DW3), although testified as defendants' witnesses, actually were supporting the plaintiffs' case as DW1 and DW3 are vendors who sold the dispute land to the plaintiffs and DW2 was called also to support that the land belonged to the vendors at the time it was sold to the plaintiffs.

The 1st and 2nd Defendant called a total of eight(8) witnesses, DW4-Shaphat Samwel Kaponela(Principal Human Resource officer in the Regional Commissioner's Office-Katavi Region), DW5-Frank Yesaya Mchomvu(Procurement officer in Regional Commissioner's Office-Katavi Region); DW6- Alfred Martin Bassu QAWAQWQ` (Planning Officer in Mpanda Municipal Council); DW7- Frank Mutambulwa Meda(Principal Survey Technical in Mpanda Municipal Council); DW8-Nyambise Sabas Muyegi (Headmistress- Mpanda Girls Secondary School), Dw9- Jeffrey Jonas Roman Katabi(Street Chairman of Misunkumilo Street);DW10-Sophia Juma Kumbuli (Municipal Director-Mpanda Municipal Council) and DW11-Japhet Evarist Kawimbe (Valuer).

In the evidence adduced by the plaintiffs, they have as their case that they purchased their respective pieces of land sometime in 2012 and 2015. The

1st plaintiff purchased nine (9) acres of land from the 3rd Defendant on the 12th April, 2012 and also in the same year on the 2nd plaintiff purchased five (5) acres of land from the 4th defendant on the 6th April, 2012. Later the 1st plaintiff purchased five (5) acres from 3rd defendant on the 12th February, 2015. The transactions have been evidenced by Exhibits P1, P2 and P5. The parcels of land in the referred transactions are not surveyed. That was not disputed by the 1st and 2nd defendant save for the mode of remedy in case of any problem to own the respective lands.

According to the evidence adduced, it was also testified by the witnesses for the plaintiffs, that before purchasing the parcels of land, they conducted a search by consulting local government leaders of Misunkumilo Street office and neighbors who confirmed that the land belongs to the vendors. Also, PW1, who is the 1st Plaintiff, testified that after he had discovered that his land had been trespassed into by the 1st defendant, he consulted the Director of Mpanda Municipal Council, Regional Commissioner's office while accompanying the vendor, Peter Mwakibinga. At one time in his efforts, he was informed by the 1st defendant that the vendors were trespassers. Refer Exh. P3; that the 1st plaintiff did not exercise enough due diligence. Omary Mahamood Kamwende (PW2) testified that in 1986 he was a member of the

local Government at Mtemi Beda Street, Misunkumilo Ward. That is the local area where the dispute land is located. When the school, Mpanda Girls was being established, they set the boundaries by planting beacons along the trees which were planted on the boundaries of area. The dispute area borders the area belonging to Mpanda Girls' Secondary school. The indigenous owners of the dispute land are the Late Aloyce Mwakibinga and Revocatus Ngomeni. The land belonging to Aloyce Mwakibinga was later inherited by his son one Peter Aloyce Mwakibinga. The testimony by PW2 was also confirmed by PW4 Ramadhani Idd Koza who was also a local leader at the Street in the years between 2009 and 2014. PW5 Chrisant Andrea Mwanawima testified that he was the Councilor of the area the dispute land is located and he confirms that as a member of the Council, in 2019 they went to visit the area and confirmed that the dispute land does belong to the plaintiffs and is outside the boundaries of Mpanda Girls' Secondary School area. That was confirmed by the Committee of Town Planning which visited the area and confirmed the borders. The testimony was also confirmed by Mr. Matondo Afred Kanyepo, who testified as PW6 and at the time he introduced himself as the Councilor of Misunkumilo Ward.

The nature of the evidence for defence, particularly the 1st and 2nd defendant, a general denial of the fact that there were such activities as to try to dissolve conflict on boundaries between the 1st defendant and people or citizens owning properties around the Mpanda Girls' Secondary School. Some of the exhibits were denied by the counsel during hearing and later utilized as evidence during their defence to the point of even bringing original copies of the same. An Example of such document is the Detailed Planning Scheme of the area where the dispute land is located, which was later admitted as Exhibit D3. However, what is important, in my view, is the main defence as comprised in the Joint Written Statement Defence by the 1st and 2nd Defendant. It has been averred in the pleadings that the 1st and 2nd defendant owns the disputed land since 1985 and the said land was surveyed in 1985 and approved in 1992(refer paragraphs Vi-Vii). However, going through the evidence tendered, the 1st and 2nd defendant have brought evidence showing that the 1st defendant owned land measuring 153 but only 83.2 acres were surveyed due to budget constraints and 69.2 acres are yet to be survey. As of now they contain natural vegetations. This is per testimony of DW7 Frank Mutamburwa Meda. Obviously, that is in variance with the pleadings.

At this juncture I think I should embark in dealing with the dispute along the line of issues raised during trial of the case as mentioned herein above. In doing so, I will consider the evidence adduced and also the submissions made by respective counsels for the parties and filed for consideration by this court.

On the first issue, as to whether the plaintiff have a cause of action against the 1st and 2nd defendant; the counsel for the plaintiff has submitted that the cause of action against the 1st and 2nd defendant is trespass to the land in dispute. He has submitted that going through the evidence as testified by PW1, PW3, DW1 and DW3, there had never been a dispute over the said land between the plaintiffs being the purchasers and the 3rd defendant and the late Revocatus Gregory Ngomeni (the vendors). The conflict arose with the trespass of the 1st and 2nd defendants to the land and restraint to the plaintiffs from using their lawfully acquired land.

The counsel has argued that from the pleadings, the 1st and 2nd defendants stated that their land was surveyed since 1985 and the survey map was approved in 1992. The dispute land is not surveyed, which shows clearly, the 1st and 2nd defendants are trespassing into the plaintiffs' land.

According to the plaintiffs the 1st and 2nd defendants' witnesses departed from the pleadings from pleadings paragraph 3(vii) of the joint written statement of defence of the 1st and 2nd defendant without leave of this court. The counsel has submitted that further to the departure above, it is established through exhibit P3 that the 1st plaintiffs was prohibited to develop the land in dispute by the 1st defendant on allegations that the land in dispute is within the boundaries of the area owned by Mpanda Girls Secondary School, despite the fact that they had knowledge that the said land belonged to the plaintiffs as evidenced in exhibit P8 and P9. The counsel has further submitted that the land owned by 1st defendant is surveyed land and its boundaries includes beacons and trees which basically separates the land in dispute from the land owned by the 1st defendant.

That position however is opposed by the 1st and 2nd defendant. The counsel for the 1st and 2nd defendant has relied on exhibit P1, P2 and P5 which were tendered in court and argued that there was a clause for reimbursement to the purchasers the purchase price and costs for unexhausted improvements made if anything will occur hindering the acquisition of ownership by PW1 and PW3 of the land in the transaction after executing the sale agreements. The counsel for the 1st and 2nd defendant has also argued that even the 1st

plaintiff admitted to have not filed any suit against the DW1 and DW3. He has argued that based on the evidence it is clear that the plaintiffs have no cause of action.

A caused of action is a set of facts that gives a party the right to seek legal remedy against another person. It is a legally recognized wrong that creates the right to sue. In the **John M. Byombalirwa Vs. Agency Maritime International (Tanzania) ltd TCA 13 [1983] TLR** it was held that the expression cause of action simply means essential facts which the plaintiff in a suit has to plead and later prove by evidence if he wants to succeed in the suit. According to the referred case, the court will look at the plaint to see whether there is a cause of action. In my view, I find the plaintiffs had a cause of action against the 1st and 2nd defendant; and therefore, the issue is concluded affirmatively.

On the 2nd issue; whether the plaintiffs are lawful owners of the disputed land. The plaintiffs testified in court and tendered exhibits P1, P2 and P5. That they bought the pieces of land from the 3rd and 4th defendant. The plaintiffs testified that before purchasing the dispute land they went to the local government authority and or leadership where they were assured that

the dispute land belongs to the vendors. That is evident in testimony of PW1, PW3, PW4, PW5 and DW1. Although the land is not surveyed the local government office being familiar with their local area confirmed to the plaintiffs that indeed the 3rd defendant and Revocatus Gregory Ngomeni are lawful owners of the said land in dispute as was testified by Omar Mahamudu Kamwendwe (PW2) street leader at the time the school, Mpanda Girls' Secondary School was established and PW4, Ramadhani Idd Koza who was street chairman of Misunkumilo Street between 2009 – 2014.

Apart from the above-named witnesses, DW10 and PW4 were competent witnesses to prove that the dispute land is outside the boundaries of Mpanda Girls Secondary School, which is owned by the 1st defendant. PW4, PW5 and PW6 testified to have visited the land in dispute in 2019 and they found that the land in dispute is outside the boundaries of Mpanda Girls Secondary School.

In the submission by the counsel for the plaintiffs he has asked this court to revisit the testimony by PW4. He testified to the effect that the dispute land is outside the boundaries of Mpanda Girls Secondary School. That evidence is credible, truthful and reliable. Moreover, the plaintiffs managed to

describe properly the land in dispute compared to the 1st and 2nd defendant who insufficiently described their land generally, the land alleged to be owned by Mpanda Girls Secondary School the evidence which is still lacking.

The counsel has insisted that the joint written statement of defence by the 1st and 2nd defendants is silent on the description of the alleged land which is not surveyed part of land claimed to be owned by the 1st defendant. For that matter, the learned counsel has submitted that the evidence concerning the description of land not yet surveyed provided by witnesses DW7, DW8, DW9 and DW10 departed from the pleadings. The same must be ignored and thus unreliable. The counsel has cited the case of **Grolia Iira Vs. Sudi Mrisha Ngwambi & 2 Others**, Civil Appeal No. 27 of 2021, Court of Appeal of Tanzania (unreported) arguing that parties are bound by their own pleadings and they cannot depart unless leave of the court is granted to amend the requisite pleadings. I have reviewed the referred decision, the relevant part reads:

"Since pleadings are the basis upon which the claim is found, it is settled law that, parties are bound by their own pleadings and that any evidence adduced by any of the

parties which is not based on or is at variance with what is stated in the pleadings must be ignored. Parties can only depart from their pleadings, where the court grants leave to amend the requisite pleadings”.

The counsel for the plaintiff has submitted that the evidence adduced by DW7, DW8, DW9 and DW10 is at variance with the joint written statement of defence of the 1st and 2nd defendant; thus, the same ought to be ignored. The counsel has argued that in that regard, there is no doubt that the plaintiffs are lawful owners of the land in dispute which they legally acquired by way of purchase as evidence by exhibit P1, exhibit P2 and exhibit P5.

Further to the submission above, the counsel for the plaintiffs has submitted that through the evidence of both sides, it is clear that the land in dispute is also the subject of Detailed Planning Scheme (DPS) as shown in exhibit D3 which was prepared in 2013. The exhibit is the sole and current Detailed Plan Scheme on the land in dispute. It has never been reviewed nor amended. According to the law section 16(3) of the **Urban Planning Act, No. 8 of 2007** that Detailed Plan Scheme must consist of survey, maps and descriptions to indicate the manner in which the land in the area may be

used. The counsel referred to the testimony by DW2 which is corroborated by the evidence by DW6.

In opposition to the submission by the Counsel for the plaintiffs, the counsel for the 1st and 2nd defendant has submitted praying that the plaintiffs should not be declared as owners. He has invited this court to consider testimonies of DW1, DW6 and DW7. He has argued that the testimony by PW1 and PW3 is weaker so far as its probative value is concerned. The counsel for the 1st and 2nd defendant has submitted inviting this court to rely on the stronger evidence adduced by DW11 and exhibit D6 tendered (compensation schedule) tendered, DW7 and exhibit D2 tendered, survey map of Mpanda Girls Secondary School and DW6's testimony, and decide in favour of the 1st and 2nd defendants so that they are declared as lawful owners of the disputed land.

I have also reviewed the record. In the testimony of DW11, indigenous people whose land was compensated for were paid their dues(compensation). Further, the land was surveyed in 1985 and approved in 1992. This evidence as is adduced, excludes the land which is not yet surveyed as not to belong to the 1st and 2nd defendant. Although it has been extensively submitted by

the counsel for the 1st and 2nd defendant, the evidence intended to be relied upon is at variance with pleadings and therefore contravening the requirement to stick by the pleadings. In my considered opinion, my hands are tied and I have to admit that the 1st and 2nd defendants tied themselves with paragraph 3(vii) of their joint written statement of defence.

I therefore find that the plaintiffs are owners of the pieces of land, claimed for, herein referred to as dispute land. The 2nd issue therefore is answered in the affirmative.

The third issue was whether the 3rd and 4th defendants have good title to pass the disputed land to the 1st and 2nd plaintiff. In the opinion of the plaintiffs, the 3rd and 4th defendant had good title to pass the disputed land to the 1st and 2nd plaintiff. The learned counsel for the plaintiff has invited this court to read the evidence as testified by DW1. He testified that in 2015 he sold 5 acres to the 1st plaintiff.

It has also been established by DW3 that in 2012 the late Revocatus Gregory Ngomeni sold 9 acres to the 1st plaintiff and 5 acres to the 2nd plaintiff. By the evidence of PW1, PW3, PW4 and DW1 it is established that the plaintiffs went to the local government office to satisfy themselves if DW1 and the

late Revocatus Gregory Ngomeni were lawful owners of the land in dispute whereas the local government confirmed to them that indeed DW1 was the lawful owner of the 5 acres and so was the Revocatus Gregory Ngomeni.

In the testimony of DW1 he traced the root of the title to the land as he acquired the said 5 acres from his late father Aloyce Mwakibinga in 1984 whereas the late Aloyce Mwakibinga acquired the same by clearing a virgin land (forest). According to PW2, PW4 and DW3 the indigenous owners of the land in dispute were the late Revocatus Ngomeni who sold 9 acres to the 1st plaintiff and Aloyce Mwakibinga the late father of DW1.

It has been submitted that the 1st and 2nd defendant have failed to disprove that the said Revocatus Gregory Ngomeni and Peter Mwakibinga were lawful owners of the land in dispute at the time Mpanda Girls Secondary School was established. There has been no any compensation which was paid to the lawful owners of the land in dispute. The compensation schedule exhibit D5 did not show that those who were alleged to have been compensated were the owners of the land in dispute; nor any among them has been called to testify that indeed they were the owners of the land in dispute and thus they were compensated for their unexhausted improvement to the disputed

land. The counsel has invited this court to draw negative inference for failure to call material witnesses. The counsel has cited the case **Hemedi Said Vs. Mohamedi Mbilu [1984] TLR 113** for the position where the court held:

"Where for undisclosed reasons, a party fails to call a material witness on his side, the court is entitled to draw an adverse inference that if the witnesses were called they would have given evidence contrary to his interests".

The counsel opined that the alleged customary owners of the land is dispute as per exhibit D5 were the material witnesses and there was no reason given for not calling them to testify on the material facts concerning payment of the alleged compensation. Therefore the 3rd Defendant and Revocatus Gregory Ngomeni had a good title to pass to the plaintiffs.

According to the counsel for the 1st and 2nd defendant the issue is discussed by analyzing the evidence of DW1 and DW3, who have been joined as necessary parties. In his view, the 3rd and 4th defendant had no title to pass, hence the 1st and 2nd plaintiffs are not lawful owners of the disputed land. The counsel for 1st and 2nd defendant has submitted and argued that the 3rd and 4th defendant never pleaded that the farms or disputed lands were

acquired by their respective parents by clearing the forest. Since that was not pleaded, then they are estopped from raising the points now. As in law, no one can give what he doesn't have. He cited the case of **Bishopsgate Motor Finance Corp. Ltd Vs. Transport Lord Denning LJ** wherein it was elaborated that:

"In the development of our law two principles have been striven for mastery. The first is the protection of property; no one can give a better title than he himself possesses".

The counsel for the 1st and 2nd defendant has also raised a point that the evidence by DW3 is contradictory. The counsel has referred to the Exhibit D5 that it shows that DW3 was looking for an alternative land after his land was taken by street leaders of Misunkumilo for an auction land and they asked DW3 to look for the free land. He found the area outside the boundaries of the school land and took the same which was later confirmed by the leaders of the street (Misunkumilo street).

According to the 3rd and 4th defendant who testified as DW1 and DW3 respectively they testified that their ownership of their respective pieces of land devolve from their fathers. The counsel has argued that no deed of gift

was tendered. And, for the DW3, she testified that she is an administrator of the estate of the late Revocatus Gregory Ngomeni. She never pleaded nor tendered a letter of administration of the alleged estate. He has argued that she failed to prove that she is the owner of the dispute land as required by law.

I have read the exhibits which were tendered by plaintiffs showing agreement to purchase pieces of land. The vendors are not the current defendants (3rd and 4th defendant). The plaintiffs bought from the deceased Revocatus Gregory Ngomeni before his demise. The 1st plaintiff bought 9 acres and 2nd plaintiff bought 5 acres. The record does not show the defendant disputes the sale agreement. But she is disputing the remedy as it is clear in the discussion of the 2nd issue. In my opinion, the plaintiffs managed to prove ownership acquired through their respective agreements and thus proved ownership. The 3rd issue is therefore resolved in a positive way.

The last issued is what reliefs each party is entitled to the plaintiffs. I have given thought to the prayers listed in the plaint and the following are the reliefs the plaintiffs entitled to:

1. Prayers (a) – (c) are granted as prayed in the plaint.
2. That the 1st defendant is ordered to leave vacant possession of the dispute land or provide an alternative equivalent land to the plaintiffs.
3. That the 1st defendant is hereby ordered to allow survey of the land in dispute and register the plaintiff if they opt not to provide them with an alternative equivalent land.
4. That the 1st defendant pays general damages to the tune of Tshs. 30,000,000/= to the plaintiffs to be distributed equally to both of them.
5. No order is given as to the exemplary damages as that will, in my opinion, be not fair to the 1st defendant.
6. Payment of decretal interest on item 4 above until payment of the same at 9% interest rate.
7. Costs of this suit.

It is ordered accordingly.

Dated and delivered at Sumbawanga this 27th day of December, 2024.




T.M. MWENEMPAZI
JUDGE